

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2026CUBT062079: KARIN J PURVIS vs ESSEX PROPERTY TRUST, INC., A
MARYLAND CORPORATION;, et al.
07/21/2026 in Department 21
Motion to Set Aside and Vacate Default**

Motion: Defendant Essex Property Trust, Inc.’s Motion to Set Aside and Vacate Default
(*Opposed*)

Tentative Ruling: Defendant Essex Property Trust, Inc.’s motion to set aside and vacate default is GRANTED under the mandatory attorney-fault provision of CCP § 473(b).

The motion was filed within a reasonable time and within six months of entry of default, was accompanied by the proposed answer, and is supported by counsel’s declaration accepting responsibility for miscalendaring the response deadline.

Counsel states that, after being retained before default was entered, he mistakenly calendared the response deadline as May 19, 2026, rather than May 10, 2026, and relied on that entry. The uncertainty concerning whether counsel typed “9” instead of “0” concerns the precise mechanism of the error, not whether counsel miscalendared the deadline or whether that error caused the default. CCP § 473(b) does not require counsel to establish that the neglect was excusable or to document every detail of the calendaring process. (*Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 437-440, 443-444.)

Although counsel’s declaration is unnecessarily qualified as being made “on information and belief,” the material facts concerning counsel’s own calendaring error, reliance, and attempted filing are plainly within his personal knowledge. The Court therefore finds the declaration sufficient to establish that the default resulted from attorney mistake or neglect.

Plaintiff correctly observes that she responded to counsel’s communications and offered to discuss a stipulation. No meet-and-confer or stipulation was required, and the communications do not undermine the causal connection between counsel’s calendaring error and the default.

Accordingly:

1. The default entered against Essex Property Trust, Inc. only is vacated.
2. Plaintiff’s pending request for entry of default judgment against Essex Property Trust, Inc. is denied as moot.
3. Essex Property Trust, Inc. shall file and serve its proposed answer within 10 calendar days.
4. Plaintiff has not submitted evidence itemizing any compensatory costs recoverable under CCP § 473(b). Her request for costs is therefore DENIED.

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The Court does not reach Essex's alternative requests for discretionary or equitable relief.

Counsel for defendant to give notice.